

#	Case Name	Tentative
	2026-01546607	plaintiff Hope Autism Therapies, LLC to arbitrate the claims asserted in its First Amended Complaint is GRANTED. A party moving to compel arbitration under Code Civil Procedure Section 1281.2 must prove by a preponderance of the evidence that: 1. The parties entered into a written agreement to arbitrate; 2. One or more of the claims at issue are covered by that agreement; and 3. The responding party refused a prior demand for arbitration under the agreement of the claims at issue. (Code Civ. Proc., § 1281.2; <i>Villacreses v. Molinari</i> (2005) 132 Cal.App.4th 1223, 1230.) If the moving party meets the above burden, the burden is shifted to the party opposing arbitration to prove unconscionability or other defenses. <i>Mar v. Perkins</i> (2024) 102 Cal.App.5th 201. Specifically, "a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." <i>Mt. Holyoke Homes, L.P. v. Jeffer Mangels Butler & Mitchell</i> (2013) 219 Cal.App.4th 1299, 1308. The arbitration language is in an addendum attached to the lease agreement. The addendum prefaces the rest of the content by stating: "This is an addendum to the lease of Suite F and the Fenced in area, as described in the above lease agreement between Lessor..." The applicable arbitration language states in part: A. ARBITRATION OF DISPUTES: Except as provided in Paragraph B below, the Parties agree to resolve any and all claims, disputes or disagreements arising under this Lease or negotiations concerning this lease, including, but not limited to any matter relating to Lessor's failure to approve an assignment, sublease or other transfer of Lessee's interest in the Lease under Paragraph 12 of this Lease, any other defaults by Lessor, or any defaults by Lessee by and through arbitration as provided below and irrevocably waive any and all rights to the contrary. The Parties agree to at all times conduct themselves in strict, full, complete and timely accordance with the terms hereof and that any attempt to circumvent the terms of this Arbitration Agreement shall be absolutely null and void and of no force or effect whatsoever.

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		B. DISPUTES EXCLUDED FROM ARBITRATION: The following claims, disputes or disagreements under this Lease are expressly excluded from the arbitration procedures set forth herein: 1. Disputes for which a different resolution determination is specifically set forth in this Lease, 2. Claims relating to (a) Lessor's exercise of any unlawful detainer rights pursuant to applicable law or (b) rights or remedies used by Lessor to gain possession of the Premises or terminate Lessee's right of possession to the Premises, all of which disputes shall be resolved by suit filed in the applicable court of jurisdiction, the decision of which court shall be subject to appeal pursuant to applicable law, and 3. All claims for injunctive relief of any kind. Plaintiff argues that the addendum doesn't apply to its lease as it did not lease Suite F. Instead, plaintiff argues it leased Suite A. Plaintiff contends it had no intention to lease Suite F and therefore the addendum, specifically referring to Suite F should not be considered. In reply, defendants argue there are only two units at 1500 Grand Avenue: the Front Suite and the Back Suite. (Supplemental Declaration of Barbara Dybnis ("Supp. Dybnis Decl.") ¶¶ 3-5.) Plaintiff leased the Front Suite. (Lease § 1.2(a).) "Suite F" is shorthand for that Front Suite, and the addendum's companion reference to "the Fenced in area" describes the enclosed parking lot, a common area of that very property. The lease itself defines the premises, in part, as follows: Premises: That certain portion of the Project (as defined below), known as the Front suite, consisting of approximately 1953 usable square feet. ("Front Suite" and the "Premises") located at 1500 Grand Avenue, Santa Ana, CA 92701. There is no mention of a Suite "A" in the lease. Addenda can modify or supplement existing lease agreements. <i>Williams v. Atria Las Posas</i>, (2018) 24 Cal.App.5th 1048. The timing and express terms of the later agreement may demonstrate the parties' intention for it to govern their relationship. The enforceability analysis focuses on whether the lessee actually signed the addendum and whether it was intended to

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		be part of the parties' agreement. Plaintiff's representative, Anthony Hamedi, signed the lease and initialed the addendum. Based on these facts, the court finds the arbitration provision applies to the parties' agreement related to the leased premises. Plaintiff argues that the arbitration provision does not apply to the disputes asserted in its claims against defendant. The central question here is whether claims sounding in misrepresentation, concealment, and bad faith fall within the scope of an arbitration clause covering disputes "arising from" the lease. Courts have consistently held that such claims are arbitrable when they are rooted in the contractual relationship. In <i>Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak St.</i>, (1983) 35 Cal.3d 312, the California Supreme Court held that an arbitration clause covering disputes "with respect to the provisions of this Lease" was broad enough to include a claim of fraud in the inducement, where the claim of substantive breach was totally embraced within the claim of fraud and the fraud issue was inextricably enmeshed in the other factual issues of the case. The <i>Ericksen</i> court further stated that doubts concerning the scope of arbitrable issues are to be resolved in favor of arbitration, and that in the absence of indication of contrary intent, claims of fraud in the inducement of the contract will be deemed subject to arbitration. See also <i>Victrola 89, LLC v. Jaman Props. 8 LLC</i>, (2020) 46 Cal.App.5th 337. Similarly, courts have also held that a broadly worded arbitration clause may extend to tort claims that arise under or from the contractual relationship, and that it has long been the rule in California that such clauses may encompass tort claims rooted in that relationship. See <i>Coast Plaza Doctors Hosp. v. Blue Cross of California</i> (2000) 83 Cal.App.4th 677. The court finds that the arbitration provision covers the majority of plaintiff's claims (with the exception discussed below). Plaintiff argues that the arbitration provision is unconscionable because it explicitly carves out unlawful detainer actions and all summary court remedies used by the landlord to secure possession, while forcing the tenant's primary statutory remedies into a cost-prohibitive arbitral forum. Plaintiff further argues that as stated in the Declaration of Anthony Hamedi filed herewith, the lease was a contract of adhesion, presented to Plaintiff on a take-it-or-leave-it basis.

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		To invalidate an arbitration provision, both procedural and substantive unconscionability must be present. <i>Armendariz v. Foundation Health Psychare Services, Inc.</i> (2000) 24 Cal. 4th 83, 114. The provision in the arbitration provision that exempts unlawful detainer matters from arbitration is substantively unconscionable. The court orders that provision stricken. There are no other substantively unconscionable provisions in the arbitration provision. The fact that the lease was offered on a take it or leave it basis presents a modicum of procedural unconscionability in the context of a commercial lease. However, as the court has stricken the only substantively unconscionable provision, plaintiff has failed to show that unconscionability prevents the enforcement of the arbitration provision. As quoted above, the arbitration provision carves out injunctions. Therefore, the court ORDERS PLAINTIFF TO ARBITRATE ALL OF ITS CLAIMS, with the exception of the Sixth Cause of Action asserting a claim under Bus. & Prof. Code Section 17200 et seq. That cause of action is ORDERED STAYED pending the outcome of the arbitration. This action is ordered STAYED pending the outcome of the arbitration. The case management conference is VACATED. The court sets an Arbitration Review Hearing for March 8, 2027 at 9:00 a.m. in this department. Five days before the hearing, the parties are ordered to submit a joint status report. Defendant Dybnis to give notice of this ruling.
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59.	Abdallah v. Anzaldo 2024-01399584	Defendant Vanessa Ferragamo Gutierrez, M.D.'s motion for summary judgment is GRANTED. Dr. Gutierrez has met her burden to show plaintiffs Shatha Ahmad Abdallah, Mazen Nemetallah, and Laila Nemetallah's sole cause of action for medical negligence has no merit. (See Code Civ. Proc., § 437c, subds. (a), (p)(2) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851 [burden]; <i>Johnson v. Superior Court</i> (2006) 143 Cal.App.4th 297, 305 [elements, standard of care]; <i>Chakalis v. Elevator Solutions, Inc.</i> (2012) 205 Cal.App.4th 1557, 1572